

IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT
IN AND FOR MANATEE COUNTY, FLORIDA

COLONIAL MANOR MHC HOLDINGS, LLC,
Plaintiff,

vs.

Case No.: 2024-CC- 2691

KALMAN HARTIG and ANY UNKNOWN
PARTY(s) IN POSSESSION,
Defendants.

COMPLAINT (CIVIL ACTION) SEEKING EVICTION AND DAMAGES

Plaintiff, COLONIAL MANOR MHC HOLDINGS, LLC, sues the Defendant(s), KALMAN HARTIG, and any UNKNOWN PARTY(S) IN POSSESSION, in possession of certain premises more fully described below, and alleges:

COUNT I
ACTION FOR POSSESSION

1. This is an action for removal of mobile home park lot tenants and possession of real property in Manatee County, Florida, as authorized by Section 723.061(1)(C)2 of Florida Statutes.
2. Plaintiff is a Foreign Limited Liability Company owning and operating a mobile home park located in Manatee County, Florida doing business as COLONIAL MOBILE MANOR.
3. Plaintiff owns the real property located at 900 9th Avenue East, Lot #100, Palmetto, Manatee County, Florida 34221.
4. Pursuant to Florida Statutes §723.031 residential rental agreements in mobile home parks, including that between the Defendant, KALMAN HARTIG and the Plaintiff, are annual.
5. Defendant, KALMAN HARTIG, a natural person, entered into a rental agreement to reside at 900 9th Ave East, Lot #100, Palmetto, Manatee County, Florida, 34221, owned by COLONIAL MANOR MHC HOLDINGS, LLC, known as COLONIAL MOBILE MANOR. A copy of the rental agreement is attached to this Complaint as Plaintiff's Exhibit A.

6. Defendant, KALMAN HARTIG, is the record owner of the mobile home located on the real property on 900 9th Ave East, Lot #100, Palmetto, Florida, 34221.

7. Defendant(s), ANY UNKNOWN PARTY IN POSSESSION, may reside on the real property at 900 9th Avenue East, Lot #100, Palmetto, Manatee County, FL 34221, Manatee County, but if so, do so without the consent of the Plaintiff.

8. Defendant, KALMAN HARTIG, has violated the Rules and Regulations of COLONIAL MOBILE MANOR, specifically, Rule 7, by using the exterior and carport for storage, resulting in a failure to maintain the premises on Lot #100 in a neat and clean manner. A copy of the Rules and Regulations of COLONIAL MOBILE MANOR are incorporated into this complaint and attached as Exhibit B.

9. When the Defendant, KALMAN HARTIG was approved to reside in COLONIAL MOBILE MANOR, he agreed to abide by the Rules and Regulations of COLONIAL MOBILE MANOR. A copy of the evidence of his agreement to abide by the rules is incorporated into this Complaint and attached to it as Exhibit C.

10. On January 17, 2024, the Defendant KALMAN HARTIG and ANY UNKNOWN PARTY(s) IN POSSESSION were notified by certified mail, return receipt requested, and by posting, that they were in violation of Rule 7 and pursuant to that notice were provided seven (7) days to correct all of the violations by ceasing the use of the driveway for storage to make the premises of Lot #100 mobile home clean, neat and sanitary. A copy of the notice and certified proof of mailing are attached to this Complaint as Plaintiff's Exhibit D.

11. On January 17, 2024, Exhibit D was also posted on 900 9th Avenue East, Lot #100, Palmetto, Manatee County, FL 34221 pursuant to Fla. Stat. §723.061.

12. After providing more than the seven days of notice set forth pursuant to Fla. Stat. §723.061 to cure the violation described in this Complaint, Defendant, KALMAN HARTIG, did not cure the violation of Rule 7 of COLONIAL MOBILE MANOR.

13. As a result, on March 14, 2024, Plaintiff posted on the premises and sent by Certified Mail Return Receipt Requested, a notice of termination of the Defendant, KALMAN HARTIG's right to reside on the premises, granting him 30 days to vacate the premises of 900 9th Avenue East, Palmetto, FL 34221, lot #100. A copy of the Notice of Termination of Tenancy and proof of certified mail are attached hereto as Plaintiff's Exhibit E.

14. Plaintiff also posted Exhibit E on the premises of Defendants on May 14, 2024.

15. On June 10, 2024, the Defendant KALMAN HARTIG and ANY UNKNOWN PARTY(s) IN POSSESSION were notified by certified mail, return receipt requested, and by posting, that they were in violation of Rule 7 and pursuant to that notice were provided seven (7) days to correct all of the violations by ceasing the use of the driveway for storage to make the premises of Lot #100 mobile home clean, neat and sanitary. A copy of the notice and certified proof of mailing are attached to this Complaint as Plaintiff's Exhibit F.

16. On June 10, 2024, Exhibit F was also posted on 900 9th Avenue East, Lot #100, Palmetto, Manatee County, FL 34221 pursuant to Fla. Stat. §723.061.

17. After providing more than the seven days of notice set forth pursuant to Fla. Stat. §723.061 to cure the violation described in this Complaint, Defendant, KALMAN HARTIG, did not cure the violation of Rule 7 of COLONIAL MOBILE MANOR.

18. As a result, on June 28, 2024, Plaintiff posted on the premises and sent by Certified Mail Return Receipt Requested, a notice of termination of the Defendant, KALMAN HARTIG's right to reside on the premises, granting him 30 days to vacate the premises of 900 9th Avenue East, Palmetto, FL 34221, lot #100. A copy of the Notice of Termination of Tenancy and proof of certified mail are attached hereto as Plaintiff's Exhibit G.

19. Plaintiff also posted Exhibit G on the premises of Defendants on June 28, 2024.

20. As of the date of the filing of this Complaint, the Defendant, KALMAN HARTIG has not complied with the Rules and Regulations of COLONIAL MOBILE MANOR Rule 3 by continuing to allow unapproved and additional residents including a suspected minor child to reside on the

premises of lot #100.

21. The monthly rental amount as of the date of this complaint is \$761.61, and all amounts paid must be accounted for pursuant to Fla. Stat. §723.061(5).

22. Pursuant to Section 723.068 of Florida Statutes, Plaintiff is entitled to an award of costs and attorney fees arising out of the action

23. Pursuant to Section 723.061(3) of Florida Statutes, Plaintiff is entitled to summary procedure set forth in Fla. Stat. 51.011.8

24. Plaintiff has retained the law firm of William C. Price, III, P.A., to represent it in this action and is obligated to pay its attorneys a reasonable fee for their services.

25. Pursuant to Fla. Stat. §723.084 the prevailing party in this action to evict the Defendants is entitled to recover its costs and attorney fees.

WHEREFORE, Plaintiff requests this Honorable Court enter a judgment for possession of the premises together with costs and reasonable attorney's fees against Defendants, KALMAN HARTIG and ANY UNKNOWN PARTY(s) IN POSSESSION, and such other and further relief as the Court may deem proper.

COUNT II
ACTION FOR DAMAGES (RENTAL)

26. This is an action seeking less than \$30,000.00 excluding costs, interest and attorney fees.

27. Plaintiff re-alleges the facts contained within paragraphs 1 through 25 as though fully set forth herein.

28. Plaintiff, as landlord, leased to Defendant, KALMAN HARTIG, Lot #100, 900 9th Avenue East, Palmetto, FL 34221 of the above stated mobile home park at a monthly lot rental fee of \$761.61.

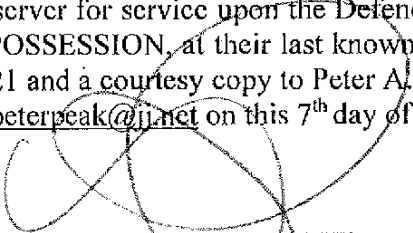
29. Plaintiff has suffered damages for unpaid rent, court costs and a reasonable attorney fee arising out of the prosecution of this action.

30. Plaintiff has retained the undersigned counsel to represent it in this action and has agreed to pay it a reasonable fee for its services.

WHEREFORE, Plaintiff requests this Honorable Court enter a judgment against Defendant, KALMAN HARTIG, for damages, costs, attorney fees and a reservation of remedies.

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true copy of the foregoing Complaint Seeking Eviction and Damages has been furnished to a private process server for service upon the Defendants, KALMAN HARTIG and ANY UNKNOWN PARTY(s) IN POSSESSION, at their last known address of 900 - 9th Avenue East, Lot #100, Palmetto, Florida, 34221 and a courtesy copy to Peter A. Peak, Esq., 2002 Manatee Ave. West, Bradenton, Florida 34205 at peterpeak@jlnet.net on this 7th day of August, 2024



William C. Price, III, Esquire
Florida Bar No. 0333824
WILLIAM C. PRICE, III, P.A.
522 Twelfth Street West
Bradenton, Florida 34205
Telephone: (941) 747-8001
Facsimile: (941) 747-3730
Primary E-Mail: pleadings@wcpricelaw.com
Attorney for Plaintiff